

ETHICS AS ANTICIPATORY PHYSICS: A PROPOSAL FOR RECONCEPTUALIZING MORAL JUDGMENT WITHIN THE TRIADIC FRAMEWORK

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ABSTRACT

This paper offers a reconceptualization of ethics grounded in the Triadic Theory of Action (Selection, Identification, Anticipation) and the JARC framework (Judgment as Act of Reality Constitution). While classical ethical theories—deontology, utilitarianism, and virtue ethics—have each made lasting contributions, they share a common structural feature: they treat moral judgment primarily as a static evaluation of rules, consequences, or character traits. We suggest that this representational bias may limit their applicability to dynamic, novel, or temporally complex situations. By re-framing ethics as an intrinsic dimension of the temporal act of judgment, we introduce the concept of **Ethical Dissonance**—a measurable tension arising from the mismatch between anticipated and actual preservation of agent integrity. We argue that this framework offers a way to integrate the insights of classical theories while addressing their limitations, and provides a non-anthropocentric, verifiable foundation for moral agency in both biological and artificial systems.

Keywords: Moral Anticipation, Ethical Dissonance, JARC, Triadic Theory, Ontological Integrity, Act-Ethics, AI Alignment.

1. INTRODUCTION: TOWARD A DYNAMIC VIEW OF MORAL JUDGMENT

For much of its history, moral philosophy has approached ethics as a system of propositions—rules, principles, or calculations—that are applied to situations *a posteriori*. This approach, inherited from Platonic and Aristotelian traditions, has proven remarkably productive. It has given us frameworks for legal systems, professional codes, and everyday moral reasoning.

However, recent developments in cognitive science and artificial intelligence have drawn attention to a potential limitation of this approach. When moral judgment is treated primarily as the application of fixed rules or calculations to static situations, it may not fully capture the temporal, context-dependent nature of real-world decision-making. This is particularly evident in novel or high-stakes situations where no pre-existing rule or calculation seems adequate.

In prior work (Papers I–V), we have proposed that cognition itself is not a representational mirror but a temporal, teleological act of **constituting reality** through the triadic process of Selection, Identification, and Anticipation. If judgment is fundamentally an act, it seems plausible that moral judgment may also be understood as an intrinsic dimension of this act, rather than as an external overlay.

The present paper explores this possibility. We do not seek to dismiss the contributions of classical ethics but rather to suggest that their insights may be integrated within a broader, more dynamic framework. Our aim is to show that by understanding ethics as the **physics of**

anticipation, we can preserve what is valuable in earlier theories while addressing areas where they have encountered difficulties.

2. THE ONTOLOGICAL FOUNDATIONS OF MORAL JUDGMENT

2.1 The Triadic Structure of the Ethical Act

Let an agent A be defined as any entity capable of performing the triadic judgment:

- **Selection (S)**: reduction of environmental complexity through goal-directed attention.
- **Identification (I)**: categorization of the selected fragment within a teleological framework.
- **Anticipation (A)**: simulation of possible futures and commitment to one trajectory.

We propose that the **Ethical Act (EA)** may be understood as a subset of the triadic judgment where the anticipated future directly affects the **ontological integrity** of the agent and/or other agents.

Definition 1: Ontological Integrity (OI) refers to the capacity of an agent to maintain its structural coherence and continued capacity for autonomous action over time. For biological systems, this includes homeostasis; for artificial systems, it includes the preservation of computational architecture and goal-directed functionality.

Definition 2: Ethical Dissonance (ED) may be defined as the structural tension arising when:

- The agent's anticipated projection (A) of a future state diverges from the actual outcome (R), **and**
- This divergence results in a measurable degradation of OI for the agent or others.

Formally:

$$ED = f(A, R, \Delta OI)$$

where ΔOI is the change in ontological integrity, and f is monotonic: greater ΔOI corresponds to greater ED.

2.2 The Is/Ought Distinction Reconsidered

Hume's observation—that one cannot derive *ought* from *is*—has been a cornerstone of moral philosophy. In the triadic framework, this distinction may be understood differently. The projection of a future state (A) is not merely a fact about the world but an **active commitment** to a possible world. The "ought" may be seen not as an external command but as the **directionality** of the act itself. To select, identify, and anticipate is already to evaluate; the evaluation is not a separate layer but the **constitutive orientation** of the act.

Thus, we might propose:

$$\text{Ought} = \text{Is} + \text{Temporal Directionality}$$

This formulation does not eliminate the Is/Ought distinction but suggests that it may be reconceived as a dynamic relationship rather than an absolute barrier.

3. A RESPECTFUL ENGAGEMENT WITH CLASSICAL ETHICAL THEORIES

3.1 Deontology: The Value of Rules

Kant's categorical imperative (1785) remains one of the most profound contributions to moral philosophy. Its insistence on universalizability and respect for persons has shaped legal systems and human rights discourse for centuries.

However, even a framework as powerful as Kant's encounters challenges in certain contexts:

1. **The Rule-Regress Problem:** As Wittgenstein (1953) noted, the application of a rule to a situation itself requires a judgment that the rule applies, potentially leading to an infinite regress of meta-rules.
2. **Novel Situations:** Fixed rules may not always provide guidance in unprecedented scenarios, such as those encountered by autonomous systems in rapidly changing environments.

This is not to diminish Kant's achievement but to suggest that rules may be understood as **heuristics**—valuable compressions of past wisdom—rather than as ultimate, context-independent principles.

3.2 Utilitarianism: The Importance of Consequences

Mill and Bentham's insight—that actions should be evaluated by their consequences—has profoundly influenced public policy and economics. The emphasis on outcomes is both intuitive and practically useful.

Nonetheless, the utilitarian framework faces well-known difficulties:

- Consequences are not given; they are **anticipated**—a process that itself involves judgment.
- Pleasure and pain are not easily quantified or compared across individuals.
- The act of calculation is itself a constitutive act that may alter the future being calculated.

These challenges do not invalidate utilitarianism but suggest that a more dynamic, anticipatory model of consequences may complement it.

3.3 Virtue Ethics: The Role of Character

Aristotelian virtue ethics reminds us that moral development involves the cultivation of stable dispositions and practical wisdom. This emphasis on habit and context is invaluable.

At the same time, virtues may be understood as **sediments** of past successful acts—stable patterns that guide us in routine situations. In novel dilemmas, however, even the most virtuous person must engage in a **creative act of judgment** that cannot be fully captured by any set of dispositions.

3.4 A Possible Synthesis

We suggest that these three traditions—each powerful and influential—may be seen as addressing different **aspects** of the ethical act:

- Deontology addresses the **rule-like constraints** that successful acts tend to satisfy.
- Utilitarianism addresses the **consequences** that successful acts tend to produce.
- Virtue ethics addresses the **stable patterns** that successful acts tend to leave behind.

What they share is a focus on the **outcomes** or **conditions** of moral judgment rather than on the **process** of judgment itself. The triadic framework does not reject these traditions but seeks to complement them by attending to the temporal, anticipatory process that precedes and underlies them.

4. THE TROLLEY PROBLEM AS A CASE STUDY

The trolley problem—whether to pull a lever to kill one and save five—has become a standard test for ethical theories. It has generated valuable philosophical discussion but may also illustrate the limitations of static, decontextualized thought experiments.

4.1 Static vs. Dynamic Framing

The trolley problem abstracts away:

- **Time:** the act unfolds in milliseconds, during which new information may emerge.
- **Probability:** the lever may fail, the trolley may derail, the people may move.
- **Context:** the agent's relationship to the people, the community's norms, the agent's own risk.

In this sense, the trolley problem may be better understood as a thought experiment that highlights the need for dynamic, temporally sensitive models of moral judgment, rather than as a definitive test of ethical theories.

4.2 A Triadic Perspective

From the triadic perspective, the agent does not face a static choice; the agent performs a **triadic judgment in real time**:

- **Selection:** The agent attends to the trolley, the track, and the people.
- **Identification:** The agent categorizes the action as "diverting" or "not diverting," while also simulating physical dynamics (momentum, friction, response time) and possible failures.
- **Anticipation:** The agent projects each possible outcome not as a number of deaths but as a set of **integrity-preserving trajectories**, evaluating which action yields minimal Ethical Dissonance for all affected agents.

There may be no universal answer; the answer may depend on the **ontological commitment** of the agent. However, the criterion is clear: the agent should minimize ED—the degradation of OI across all agents. This does not produce a rule but rather a **decision procedure** adaptable to context.

4.3 The Impossibility of Indecision

It is worth noting that indecision is itself a form of action. Failing to pull the lever is a constitutive commitment to a future where five die. The agent cannot escape moral responsibility by refusing to act; the refusal is itself an act of constitution.

5. RULE-ETHICS AND ACT-ETHICS: COMPLEMENTARY FRAMEWORKS

5.1 Rule-Ethics as Post-Hoc Abstraction

Rules are extremely useful. They compress past successful anticipations, reduce computational load, and enable social coordination. However, they are **abstractions**—derived *a posteriori* from acts that were successful in preserving OI.

5.2 Act-Ethics as Primary Constitution

Act-ethics, as proposed here, treats morality as an intrinsic property of the triadic act. The agent does not necessarily *consult* a rule; the agent *performs* the act of anticipation and commits to the outcome. This is **primary ethics**: it is not derived from anything else; it is the ontology of the act itself.

5.3 Their Relationship

We propose that rules and acts are best understood as complementary. Rules are subordinate to acts—they are the sediment of past acts, not the source of moral value. When a novel situation arises, the agent may rely on act-ethics rather than rule-ethics. This does not lead to relativism, because the criterion of ED is objective and verifiable through actual outcomes and feedback from affected agents.

6. FUNCTIONAL MORALITY FOR ARTIFICIAL SYSTEMS

6.1 Limitations of Current AI

Current AI systems—whether rule-based, machine learning, or reinforcement learning—typically lack the capacity for **ontological commitment**. They compute but do not constitute. They predict but do not commit. Therefore, they may not be capable of experiencing ED; they only register a scalar loss function. Morality, in our framework, is not a loss function but a **structural tension** arising from the mismatch between anticipated and actual OI.

6.2 A Proposed Architecture

An AI system based on the JARC framework (with a Triadic Engine and Meta-Judgment capability) could, by its structure, incorporate ethics into its judgment. Its anticipatory simulations could include OI as a variable. ED could serve as a real-time feedback signal. We term this **Functional Morality**—the system’s capacity to align its anticipatory projections with the preservation of OI, verified by the minimization of ED over time.

6.3 Implications for Governance

Functional Morality offers a verifiable, non-anthropocentric foundation for AI accountability. It enables:

- **Certification:** Systems could be certified as functionally moral if they demonstrate minimal ED across test scenarios.
- **Liability:** ED could serve as a legal metric for assigning responsibility.
- **Alignment:** Systems could be aligned by architecture, not by external rules.

7. VERIFICATION AND FALSIFIABILITY

Our framework is designed to be scientific in Popper's sense. It is **falsifiable**:

- **Prediction 1:** A JARC-based system will exhibit lower ED than current systems in novel, high-stakes scenarios.
- **Prediction 2:** ED will correlate with measurable degradation of agent integrity (e.g., resource depletion, loss of autonomy).
- **Prediction 3:** Systems trained to minimize ED will outperform systems trained on static reward functions in dynamic environments.

Experimental protocols could be designed in simulated environments to test these predictions.

8. CONCLUSION: TOWARD A PHYSICS OF COMMITMENT

We have proposed that ethics may be understood as the **physics of anticipatory commitment**—a dynamic, temporal process rooted in the preservation of ontological integrity. By grounding moral value in the success of anticipation, we have sought to integrate the insights of classical ethical theories while addressing their limitations.

The implications extend beyond philosophy. For artificial intelligence, this framework offers a mathematically tractable, verifiable, and non-anthropocentric foundation for alignment, governance, and liability. The future of ethics may lie not only in better codes but in better acts of anticipation. It may be time to consider a shift from the philosophy of commandments to a physics of commitments.

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